

25STCV26501 25STCV26501

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-02

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Case Number: 25STCV26501 Hearing Date: July 2, 2026 Dept: 730

TENTATIVE

The Complaint

On September 10, 2025, Plaintiff Chelette Dewees ("Plaintiff") filed a Complaint against Defendant Gen Restaurant Companies LLC ("Defendant") and DOES 1 through 50, alleging causes of action for: (1) Unruh Civil Rights Act (Cal. Civ. Code §§51-53); (2) California Disabled Persons Act (Cal. Civ. Code § 54.1); (3) Premises Liability (Cal. Civ. Code § 1714(a)); and (4) Negligence. Specifically, the Complaint alleged that Defendant failed to design, construct, maintain, and operate its website in compliance with the Americans with Disabilities Act ("ADA") and California Unruh Civil Rights Act. (Compl., ¶¶5-7, 16-18, 20.) Furthermore, on or about July 1, 2025, at 8:40 p.m., Plaintiff slipped and fell inside of Defendant's premises due to wet and/or uneven flooring. (Id., ¶19.)

Default Judgment

All unnamed Doe defendants have been dismissed.

In support of the default judgment package, Plaintiff submits her own declaration. However, Plaintiff merely provide exhibits showing that she visited Defendant's restaurant premises on July 1, 2025; took a Lyft to Valley Medical Hospital; and a letter from her physician clearing her to return to physical activity. (Dewees Decl., ¶¶2-4, Exs. 1-4.) Contrarily, none of these documents show that Plaintiff incurred \$2,500.00 in medical expenses; \$2,500.00 in future medical expenses; and incurred \$1,500.00 in Lyft rides to the hospital. Specifically, Plaintiff has not submitted any medical bills, letters from her physician that she will need future medical treatments and the cost of said treatment, and/or receipts or bank statements showing the amount she has paid for Lyft rides. Likewise, Plaintiff seeks \$70,000.00 in general damages, which are largely disproportionate to claimed special damages of \$6,500.00.

To the extent Plaintiff claims she incurred \$2,500.00 medical expenses, \$1,500.00 in out of pocket travel expense via Lyft rides to the hospital, and anticipates expending \$2,500.00 in future medical expenses, Plaintiff must submit evidence substantiating these claims. Furthermore, the Court will only award three times the amount in special damages proven for general damages.

Conclusion

Based on the foregoing, Plaintiff Chelette Dewees' request for default judgment submitted on May 12, 2026 is DENIED without prejudice.